

CORRUPTION: LEGAL FRAMEWORK

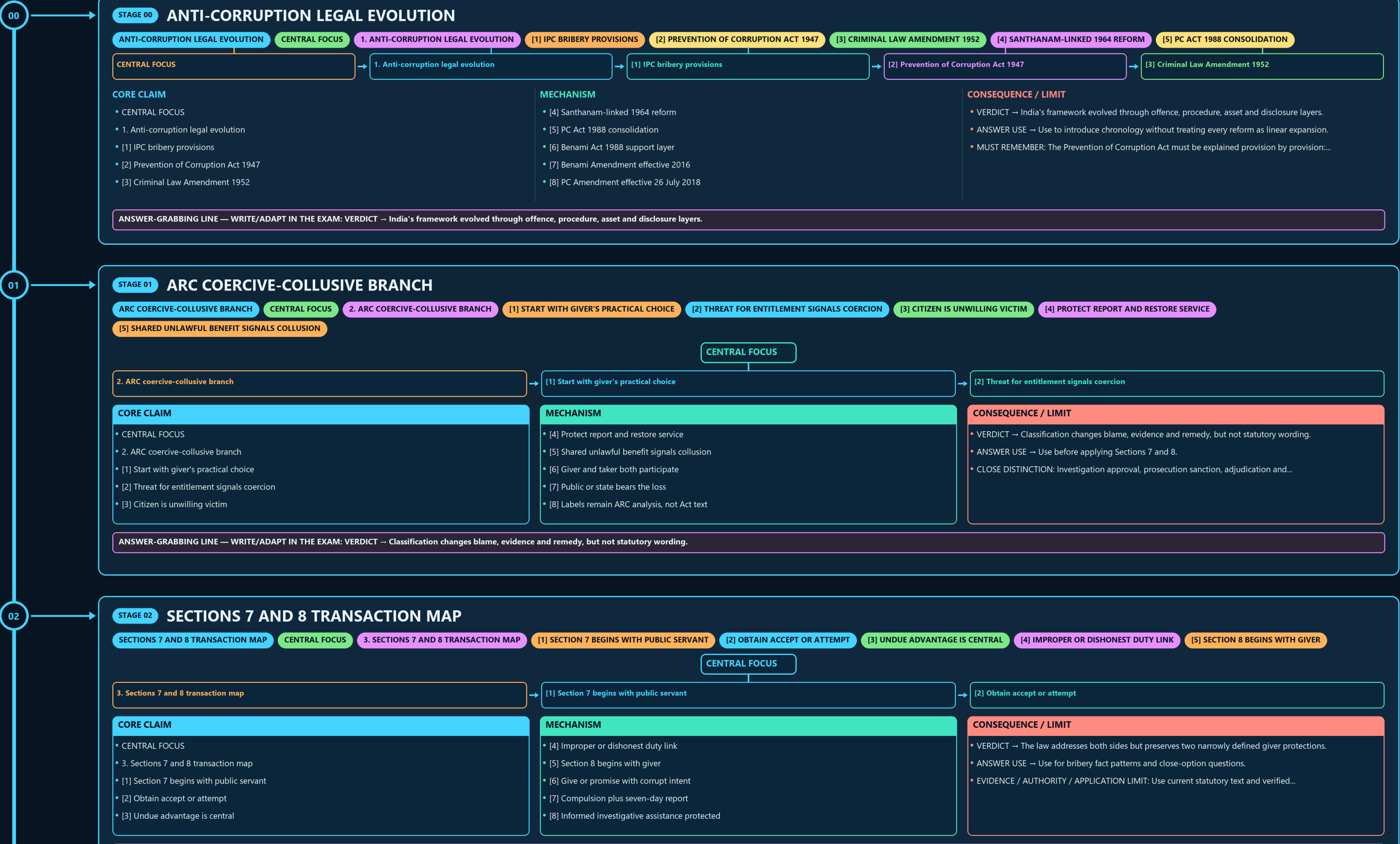
ANTI-CORRUPTION LEGAL EVOLUTION → ARC COERCIVE-COLLUSIVE BRANCH → SECTIONS 7 AND 8 → SECTIONS 9 AND 10 → SECTION 13 NARROWING → SECTION 17A INVESTIGATION GATE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02 SECTIONS 7 AND 8 TRANSACTION MAP

SECTIONS 7 AND 8 TRANSACTION MAP

CENTRAL FOCUS

3. SECTIONS 7 AND 8 TRANSACTION MAP

[1] SECTION 7 BEGINS WITH PUBLIC SERVANT

[2] OBTAIN ACCEPT OR ATTEMPT

[3] UNDUE ADVANTAGE IS CENTRAL

[4] IMPROPER OR DISHONEST DUTY LINK

[5] SECTION 8 BEGINS WITH GIVER

CENTRAL FOCUS

3. Sections 7 and 8 transaction map

[1] Section 7 begins with public servant

[2] Obtain accept or attempt

CORE CLAIM

- CENTRAL FOCUS
- 3. Sections 7 and 8 transaction map
- [1] Section 7 begins with public servant
- [2] Obtain accept or attempt
- [3] Undue advantage is central

MECHANISM

- [4] Improper or dishonest duty link
- [5] Section 8 begins with giver
- [6] Give or promise with corrupt intent
- [7] Compulsion plus seven-day report
- [8] Informed investigative assistance protected

CONSEQUENCE / LIMIT

- VERDICT → The law addresses both sides but preserves two narrowly defined giver protections.
- ANSWER USE → Use for bribery fact patterns and close-option questions.
- EVIDENCE / AUTHORITY / APPLICATION LIMIT: Use current statutory text and verified...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → The law addresses both sides but preserves two narrowly defined giver protections.

03

STAGE 03 SECTIONS 9 AND 10 CORPORATE MAP

SECTIONS 9 AND 10 CORPORATE MAP

CENTRAL FOCUS

4. SECTIONS 9 AND 10 CORPORATE MAP

[1] ASSOCIATED PERSON SUPPLIES THE CONDUCT

[2] UNDUE ADVANTAGE IS GIVEN OR PROMISED

[3] BUSINESS RETENTION OR ADVANTAGE INTENDED

[4] SECTION 9 EXPOSES ORGANISATION TO FINE

[5] ADEQUATE PROCEDURES FORM A DEFENCE

CENTRAL FOCUS

4. Sections 9 and 10 corporate map

[1] Associated person supplies the conduct

[2] Undue advantage is given or promised

CORE CLAIM

- CENTRAL FOCUS
- 4. Sections 9 and 10 corporate map
- [1] Associated person supplies the conduct
- [2] Undue advantage is given or promised

MECHANISM

- [3] Business retention or advantage intended
- [4] Section 9 exposes organisation to fine
- [5] Adequate procedures form a defence
- [6] Evidence must test real implementation

CONSEQUENCE / LIMIT

- [7] Consent or connivance links management
- [8] Section 10 creates personal officer liability
- VERDICT → Organisation liability and officer liability have different statutory connectors.
- ANSWER USE → Use to avoid automatic vicarious-liability claims.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Organisation liability and officer liability have different statutory connectors.

04

STAGE 04 SECTION 13 NARROWING

SECTION 13 NARROWING

CENTRAL FOCUS

5. SECTION 13 NARROWING

[1] PRE-2018 ABUSE-OF-POSITION HEAD EXISTED

[2] 2018 REMOVED THAT BROAD ROUTE

[3] CURRENT HEAD ONE

ENTRUSTED PROPERTY

[4] DISHONEST OR FRAUDULENT DIVERSION

CORE CLAIM

- CENTRAL FOCUS
- 5. Section 13 narrowing
- [1] Pre-2018 abuse-of-position head existed
- [2] 2018 removed that broad route

MECHANISM

- [3] Current head one: entrusted property
- [4] Dishonest or fraudulent diversion
- [5] Allowing another to convert also covered
- [6] Current head two: illicit enrichment

CONSEQUENCE / LIMIT

- [7] Disproportionate assets require accounting
- [8] Ethical abuse may survive outside Section 13
- VERDICT → Current criminal misconduct is narrower than general ethical misuse of office.
- ANSWER USE → Use for provision precision and balanced reform analysis.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Current criminal misconduct is narrower than general ethical misuse of office.

05

STAGE 05 SECTION 17A INVESTIGATION GATE

SECTION 17A INVESTIGATION GATE

CENTRAL FOCUS

6. SECTION 17A INVESTIGATION GATE

[1] IDENTIFY PC ACT ALLEGATION

[2] IDENTIFY SERVING OR FORMER PUBLIC SERVANT

[3] LINK TO OFFICIAL RECOMMENDATION OR DECISION

[4] PREVIOUS APPROVAL ORDINARILY REQUIRED

[5] APPROPRIATE AUTHORITY MUST DECIDE

CENTRAL FOCUS

6. Section 17A investigation gate

[1] Identify PC Act allegation

[2] Identify serving or former public servant

[3] Link to official recommendation or decision

CORE CLAIM

MECHANISM

CONSEQUENCE / LIMIT

05

SECTION 13 NARROWING

CENTRAL FOCUS

5. SECTION 13 NARROWING

[1] PRE-2018 ABUSE-OF-POSITION HEAD EXISTED

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06

STAGE 05

SECTION 17A INVESTIGATION GATE

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CENTRAL FOCUS

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[3] LINK TO OFFICIAL RECOMMENDATION OR DECISION

[4] PREVIOUS APPROVAL ORDINARILY REQUIRED

[5] APPROPRIATE AUTHORITY MUST DECIDE

CENTRAL FOCUS

→

6. Section 17A investigation gate

→

[1] Identify PC Act allegation

→

[2] Identify serving or former public servant

→

[3] Link to official recommendation or decision

CORE CLAIM

- CENTRAL FOCUS
- 6. Section 17A investigation gate
- [1] Identify PC Act allegation
- [2] Identify serving or former public servant

MECHANISM

- [3] Link to official recommendation or decision
- [4] Previous approval ordinarily required
- [5] Appropriate authority must decide
- [6] Three months is prescribed

CONSEQUENCE / LIMIT

- [7] One recorded month may extend
- [8] Spot acceptance arrest bypasses approval
- VERDICT → Section 17A is decision-linked and stage-specific, not rank-based immunity.
- ANSWER USE → Use for honest-decision protection versus delay debates.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Section 17A is decision-linked and stage-specific, not rank-based immunity.

07

STAGE 06

SECTION 19 COGNIZANCE GATE

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CENTRAL FOCUS

7. SECTION 19 COGNIZANCE GATE

[1] INVESTIGATION PRODUCES PROSECUTABLE MATERIAL

[2] COURT COGNIZANCE IS THE STATUTORY STAGE

[3] ACCUSED OFFENCE MUST BE IN LISTED SET

[4] SECTIONS 7 10 11 13 15 ARE LISTED

[5] COMPETENT GOVERNMENT OR AUTHORITY SANCTIONS

7. Section 19 cognizance gate

→

[1] Investigation produces prosecutable material

→

[2] Court cognizance is the statutory stage

CENTRAL FOCUS

CORE CLAIM

- CENTRAL FOCUS
- 7. Section 19 cognizance gate
- [1] Investigation produces prosecutable material
- [2] Court cognizance is the statutory stage

MECHANISM

- [3] Accused offence must be in listed set
- [4] Sections 7 10 11 13 15 are listed
- [5] Competent government or authority sanctions
- [6] Three-month endeavour disciplines decision

CONSEQUENCE / LIMIT

- [7] Legal consultation permits one more month
- [8] No invented automatic sanction on expiry
- VERDICT → Investigation approval and prosecution sanction must never be collapsed.
- ANSWER USE → Use to compare Sections 17A and 19.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Investigation approval and prosecution sanction must never be collapsed.

STAGE 07

SECTION 20 PROOF LADDER

SECTION 20 PROOF LADDER

CENTRAL FOCUS

8. SECTION 20 PROOF LADDER

[1] TRIAL MUST CONCERN SECTION 7 OR 11

[2] ACCEPTANCE OBTAINING OR ATTEMPT IS PROVED

[3] FOUNDATIONAL PROOF PRECEDES PRESUMPTION

[4] COURT PRESUMES STATUTORY CORRUPT PURPOSE

[5] SECTION 11 CONSIDERATION ISSUE ALSO COVERED

8. Section 20 proof ladder

→

[1] Trial must concern Section 7 or 11

→

[2] Acceptance obtaining or attempt is proved

CENTRAL FOCUS

CORE CLAIM

- CENTRAL FOCUS
- 8. Section 20 proof ladder
- [1] Trial must concern Section 7 or 11
- [2] Acceptance obtaining or attempt is proved

MECHANISM

- [3] Foundational proof precedes presumption
- [4] Court presumes statutory corrupt purpose
- [5] Section 11 consideration issue also covered
- [6] Accused may prove the contrary

CONSEQUENCE / LIMIT

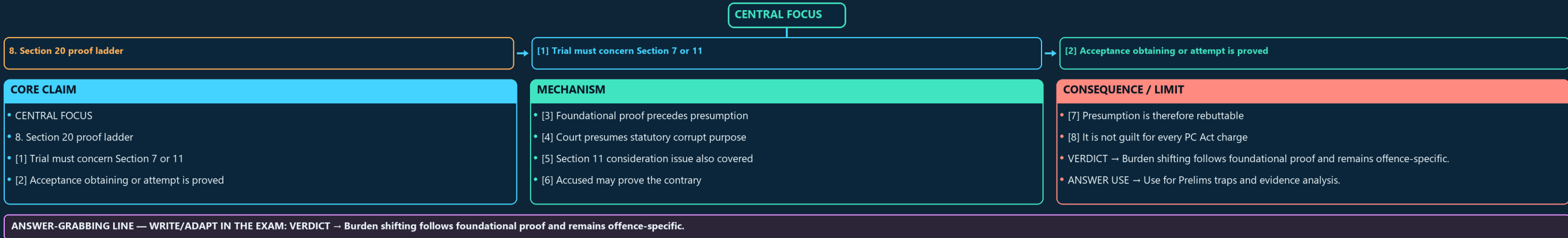
- [7] Presumption is therefore rebuttable
- [8] It is not guilt for every PC Act charge
- VERDICT → Burden shifting follows foundational proof and remains offence-specific.
- ANSWER USE → Use for Prelims traps and evidence analysis.

CORRUPTION: LEGAL FRAMEWORK • TILE 3/5 • same master rows 4560-7794 of 12354 • continues below

07

STAGE 07 SECTION 20 PROOF LADDER

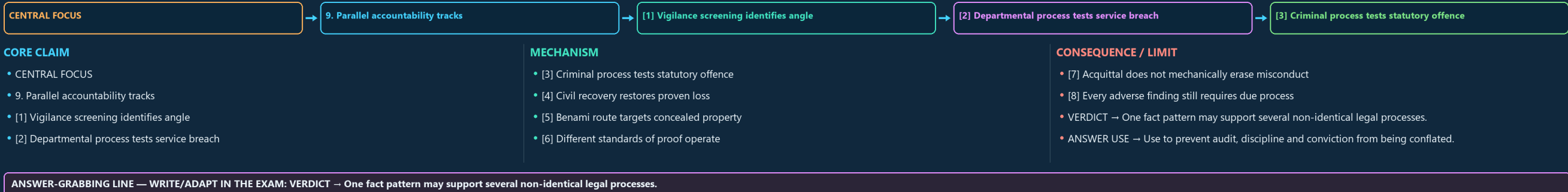
- SECTION 20 PROOF LADDER CENTRAL FOCUS 8. SECTION 20 PROOF LADDER [1] TRIAL MUST CONCERN SECTION 7 OR 11 [2] ACCEPTANCE OBTAINING OR ATTEMPT IS PROVED [3] FOUNDATIONAL PROOF PRECEDES PRESUMPTION [4] COURT PRESUMES STATUTORY CORRUPT PURPOSE [5] SECTION 11 CONSIDERATION ISSUE ALSO COVERED



08

STAGE 08 PARALLEL ACCOUNTABILITY TRACKS

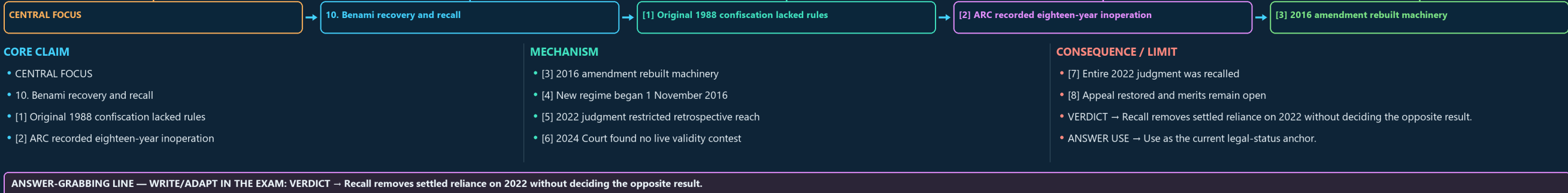
- PARALLEL ACCOUNTABILITY TRACKS CENTRAL FOCUS 9. PARALLEL ACCOUNTABILITY TRACKS [1] VIGILANCE SCREENING IDENTIFIES ANGLE [2] DEPARTMENTAL PROCESS TESTS SERVICE BREACH [3] CRIMINAL PROCESS TESTS STATUTORY OFFENCE [4] CIVIL RECOVERY RESTORES PROVEN LOSS [5] BENAMI ROUTE TARGETS CONCEALED PROPERTY



09

STAGE 09 BENAMI RECOVERY AND RECALL

- BENAMI RECOVERY AND RECALL CENTRAL FOCUS 10. BENAMI RECOVERY AND RECALL [1] ORIGINAL 1988 CONFISCATION LACKED RULES [2] ARC RECORDED EIGHTEEN-YEAR INOPERATION [3] 2016 AMENDMENT REBUILT MACHINERY [4] NEW REGIME BEGAN 1 NOVEMBER 2016 [5] 2022 JUDGMENT RESTRICTED RETROSPECTIVE REACH



10

STAGE 10 WHISTLEBLOWER PROTECTION GAP

- WHISTLEBLOWER PROTECTION GAP CENTRAL FOCUS 11. WHISTLEBLOWER PROTECTION GAP [1] EVIDENCE-BASED DISCLOSURE BEGINS PROCESS [2] IDENTITY CONFIDENTIALITY REDUCES RETALIATION [3] PIDPI RESOLUTION DATES TO 21 APRIL 2004 [4] 2014 ACT RECEIVED ASSENT 9 MAY [5] SECTION 1(3) REQUIRED NOTIFICATION

CENTRAL FOCUS



CENTRAL FOCUS

10. Benami recovery and recall

[1] Original 1988 confiscation lacked rules

[2] ARC recorded eighteen-year inoperation

[3] 2016 amendment rebuilt machinery

CORE CLAIM

- CENTRAL FOCUS
- 10. Benami recovery and recall
- [1] Original 1988 confiscation lacked rules
- [2] ARC recorded eighteen-year inoperation

MECHANISM

- [3] 2016 amendment rebuilt machinery
- [4] New regime began 1 November 2016
- [5] 2022 judgment restricted retrospective reach
- [6] 2024 Court found no live validity contest

CONSEQUENCE / LIMIT

- [7] Entire 2022 judgment was recalled
- [8] Appeal restored and merits remain open
- VERDICT → Recall removes settled reliance on 2022 without deciding the opposite result.
- ANSWER USE → Use as the current legal-status anchor.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Recall removes settled reliance on 2022 without deciding the opposite result.

10

STAGE 10

WHISTLEBLOWER PROTECTION GAP

WHISTLEBLOWER PROTECTION GAP

CENTRAL FOCUS

11. WHISTLEBLOWER PROTECTION GAP

[1] EVIDENCE-BASED DISCLOSURE BEGINS PROCESS

[2] IDENTITY CONFIDENTIALITY REDUCES RETALIATION

[3] PIDPI RESOLUTION DATES TO 21 APRIL 2004

[4] 2014 ACT RECEIVED ASSENT 9 MAY

[5] SECTION 1(3) REQUIRED NOTIFICATION

11. Whistleblower protection gap

[1] Evidence-based disclosure begins process

[2] Identity confidentiality reduces retaliation

CENTRAL FOCUS

CORE CLAIM

- CENTRAL FOCUS
- 11. Whistleblower protection gap
- [1] Evidence-based disclosure begins process
- [2] Identity confidentiality reduces retaliation

MECHANISM

- [3] PIDPI Resolution dates to 21 April 2004
- [4] 2014 Act received assent 9 May
- [5] Section 1(3) required notification
- [6] No commencement notification has issued

CONSEQUENCE / LIMIT

- [7] 2015 Amendment Bill later lapsed
- [8] Comprehensive statutory gap therefore persists
- VERDICT → Enactment and assent do not equal commencement or operation.
- ANSWER USE → Use for direct whistleblower and reform questions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Enactment and assent do not equal commencement or operation.

11

STAGE 11

EXAMINER-READY LEGAL ANSWER SPINE

EXAMINER-READY LEGAL ANSWER SPINE

CENTRAL FOCUS

12. EXAMINER-READY LEGAL ANSWER SPINE

[1] CLASSIFY ETHICAL TRANSACTION CAREFULLY

[2] NAME EXACT SECTION AND LEGAL ACTOR

[3] STATE INGREDIENTS RATHER THAN CONCLUSION

[4] IDENTIFY INVESTIGATION OR TRIAL STAGE

[5] ADD EXCEPTION TIMELINE OR DEFENCE

CENTRAL FOCUS

12. Examiner-ready legal answer spine

[1] Classify ethical transaction carefully

[2] Name exact section and legal actor

[3] State ingredients rather than conclusion

CORE CLAIM

- CENTRAL FOCUS
- 12. Examiner-ready legal answer spine
- [1] Classify ethical transaction carefully
- [2] Name exact section and legal actor

MECHANISM

- [3] State ingredients rather than conclusion
- [4] Identify investigation or trial stage
- [5] Add exception timeline or defence
- [6] Separate statute from ARC proposal

CONSEQUENCE / LIMIT

- [7] State current uncertainty honestly
- [8] Conclude with balanced enforceable reform
- VERDICT → Provision plus stage plus qualification is the core of legal precision.
- ANSWER USE → Use to structure 10, 15 and 20-mark answers.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → Provision plus stage plus qualification is the core of legal precision.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

1. ARCHITECTURE

2. CONCEPTS AND DISTINCTIONS

3. DETAILED TREATMENT

4. INSTITUTIONAL AND REFORM ARCHITECTURE

5. INDIAN APPLICATIONS AND BOUNDARY CASES

6. LIMITATIONS AND TRADE-OFFS

7. MUST-KNOW FACTS FOR ADVANCED PRELIMS

OPTIONAL SOURCE DEPTH

- 1. Architecture
- 2. Concepts and distinctions
- 3. Detailed treatment
- 4. Institutional and reform architecture

ADVANCED DEBATE

- 5. Indian applications and boundary cases
- 6. Limitations and trade-offs
- 7. Must-Know Facts for Advanced Prelims
- 8. Advanced Prelims traps

LEGACY / NUANCE

- 9. Current-anchor application
- 10. PYQ-based analytical application
- 11. Mains-ready framework
- 12. Probable questions

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.